

25STCV32637 25STCV32637

County: los-angeles

Division: Civil Law and Motion

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

25STCV32637

ROBERT

JOSEPH FERNANDEZ vs GENERAL MOTORS LLC

July

2, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES.

RULING:

The Court grants the Motion, reduced as to the requested .5 multiplier enhancement for \$4,633.75, not as prayed.

Plaintiff

ROBERT JOSEPH FERNANDEZ is awarded attorneys' fees, costs and expenses, in the total amount of \$13,095.58 against Defendant GENERAL MOTORS LLC.

Plaintiff to give notice.

I.

BACKGROUND

On November 7, 2025, ROBERT JOSEPH FERNANDEZ (Plaintiff) filed a Lemon Law Complaint against GENERAL MOTORS LLC (Defendant), alleging Causes of Action under the Song-Beverly Consumer Warranty Act (Civ. Code §§ 1790-1795.8), along with a Claim for Violation of Tanner Consumer Protection Act.

Plaintiff alleges

purchasing, with warranty provisions, a 2024 GMC Sierra that Defendant manufactured, which had defects, including engine, transmission, electrical, etc. Plaintiff further alleges that Defendant failed to repair the vehicle within a reasonable number of attempts and did not promptly replace it or make restitution.

On May 27, 2026, Plaintiff filed the Motion for Attorneys' Fees, Costs and Expenses, generally on grounds that Plaintiff is the prevailing party based on a settlement agreement and statutory provisions.

Defendant opposes, based upon

counterarguments such as that the amounts are excessive considering a straightforward Complaint, minimal litigation, template usage, and a settlement in about five months. As for the issue of awarding a multiplier, Defendant emphasizes that Plaintiff's counsel did the minimum amount of work on a simple Song-Beverly case.

II.

LEGAL STANDARD

“The Song-Beverly Act’s

attorney fee provision “‘requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable.’” (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1158.)

Under the Song-Beverly

Act, the question whether attorneys’ fees were reasonably incurred may depend on circumstances including, “factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved.” (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470. The appellate court reviews awards of attorney fees under Civil Code section 1794, subdivision (d), for abuse of discretion. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 998 (Doppes).)

Civil Code Section

1794(d) requires a court to base an attorneys’ fee award on actual time expended on the case, and reasonably incurred, as to time spent, and amount, under all circumstances including complexity of the case, procedural demands, skill exhibited, and results achieved. (McKenzie v. Ford Motor Co. (2015) 238 Cal.App.4th 695, 698, 703.) “The ‘plain wording’ of section 1794, subdivision (d) requires the trial court to ‘base’ the prevailing buyer’s attorney fee award ‘upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.’” (Warren v. Kia Motors Am., Inc. (2018) 30 Cal.App. 5th 24, 35. Accord Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 817. But see Reynolds v. Ford Motor Co. (2020) 47 Cal.App.5th 1105, 1110 [as to the Song-Beverly Act, fee awards must be based on the judge’s calculation of actual time expended determined to have been incurred reasonable, and the Act does not include a requirement that the court also determine that the amount of attorneys’ fees is reasonable].)

“[V]erified time

statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Board of Trustees of California State Etc. (2005) 132 Cal.App.4th 359, 396 [deciding it was an abuse of discretion to completely disregard counsel’s time records based upon finding numerous instances of overlapping work].)

The appellate court reviews awards of attorney fees under Civil Code section 1794, subdivision (d), for abuse of discretion. (Doppes, supra, 174 Cal.App.4th at p. 998.)

“[I]n enacting Civil Code section 1794, subdivision (d) the Legislature intended the phrase ‘costs and expenses’ to cover items not included in “ ‘the detailed statutory definition of ‘costs’ ” set forth in Code of Civil Procedure section 1033.5.” (Warren v. Kia Motors Am., Inc. (2018) 30 Cal.App.5th 24, 42, 43 [“it is indisputable that Warren ‘reasonably incurred’ the \$5,882 cost of the trial transcripts ‘in connection with the ... prosecution of [the] action.’ ”].) The Song-Beverly Warranty Act, “requires payment only of those costs and fees ‘determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution’ of the underlying action.” (Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 813.)

III.

ANALYSIS

Plaintiff’s Reply

contains arguments such as that the various opposing assertions like “padding,” “incredible,” and “absurd,” are made without supportive evidentiary foundation, whereas Plaintiff’s billing records were submitted with the Declaration of Peter Maissian.

Defendant advocates that

the Court to award no more than \$4,110.00 in fees and costs. Specifically, Defendant seeks reductions of amounts described as:

.

Block-Billed Clerical and Administrative Time.

.

Templated Complaint Package.

.

Excessive Time Compiling Initial Disclosures.

.
Excessive Time Drafting and Filing/Serving
Notice of Jury Fees.

.
Excessive Time Drafting Case Management
Statement and Meet and Confer Letter.

.
Anticipated Attorneys' Fees.

.
Multiplier.

.
Unreasonable and unnecessary costs.

(Opposition, pp. 4-6, 8.)

As to Song–Beverly
warranty claims, prevailing buyers have the burden to show that the fees
incurred were reasonably necessary to the conduct of the litigation and were
reasonable in amounts. (Doppes, supra, 174 Cal.App.4th at p. 998.)

“ ‘In challenging
attorney fees as excessive because too many hours of work are claimed, it is
the burden of the challenging party to point to the specific items challenged,
with a sufficient argument and citations to the evidence. General arguments
that fees claimed are excessive, duplicative, or unrelated do not suffice.’ ” (Lunada Biomedical v. Nunez (2014) 230
Cal.App.4th 459, 488. Accord, Etcheson v. FCA US LLC (2018) 30
Cal.App.5th 831, 848.)

Records amounting to
vague block billing are not objectionable per se, but are a risky choice,
because moving parties have the burden to support fees requests, and the
strategy may lead to trial courts' discretionary curtailing of the number of
compensable hours. (Christian Research
Inst. v. Alnor (2008) 165 Cal.App.4th 1315, 1325.) “Block billing occurs
when ‘a block of time [is assigned] to multiple tasks rather than itemizing the
time spent on each task.’ ” (Mountjoy v. Bank of Am., N.A. (2016) 245

Cal.App.4th 266, 279.)

Support services,

including expenses related to secretaries and paralegals, are includable in an award for attorneys' fees. (City of

Oakland v. McCullough (1996) 46 Cal.App.4th 1, 7.) As to parties prevailing in an action on a contract with terms for recovery of attorney fees and costs, counsel's disbursement costs, such as secretarial, copying, telephone, expert fees and travel, are recoverable as a part of attorney fees, "if they represent expenses ordinarily billed to a client and are not included in the overhead component of counsel's hourly rate." (Bussey

v. Affleck (1st Dist. 1990) 225 Cal.App.3d 1162, 1166-1167 ("Bussey"), abrogated by Hsu v. Semiconductor

Sys., Inc. (2005) 126 Cal.App.4th 1330, 1342 [noting split of authority].

But see, e.g., Benson v. Kwikset Corp. (4th Dist. 2007) 152 Cal.App.4th 1254, 1283 [recognizing split of authority];

Fairchild v. Park (2d Dist.

2001) 90 Cal.App.4th 919, 930 [disagreeing with Bussey opinion, and following view that attorney fees and expenses are distinctly different by statute]; Robert L. Cloud & Assocs.,

Inc. v. Mikesell (1st Dist. 1999) 69 Cal.App.4th 1141, 1154 ["attorney fees do not include expenses...."].)

There

is a dearth of California law about considering templates usage in deciding motions for attorneys' fees. "A legal proposition asserted without apposite authority necessarily fails." (People v.

Taylor (2004) 119 Cal.App.4th 628, 643.) A trial court's

referencing counsel's use of templates, including reasoning that fewer

attorneys were necessary in a case, was affirmed. (See Morris v. Hyundai

Motor Am. (2019) 41 Cal.App.5th 24, 31-33, 39 ["asserted that even though her counsel used 'form documents' in the case, work was necessary to conform

those templates to the actual facts of this case."].) A federal Court of Appeals rejected an

argument that a trial court judge should have reduced attorneys' fees on the

grounds of counsel's use of a form template for drafting a complaint, where

other evidence nonetheless supported the finding of a total reasonable amount.

(See Laney v. BBB Logistics, Inc. (11th Cir. 2021) 844 F. App'x 203, 209.)

Anticipated attorneys'

fees estimated before they are incurred for a reply, which are based upon substantial evidence, are awardable, unless there is opposing evidence supporting judges' findings that the fees are speculative or incredible. (Menezes v. McDaniel (2019) 44 Cal.App.5th 340, 349.)

Courts are not required to include a multiplier fee enhancement, but may consider, in their discretion, novelty and difficulty of the questions, skill displayed, extent the case precluded other employment, and the contingent nature of the fee award. (Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 248 ["court went further as to the multiplier issue, emphasizing that this was 'not a complicated case,' and the 'request for a multiplier was specious.' "].)

The Court has reviewed the amounts of hours and billed attorneys' fees and finds that none are excessive, especially considering that here small sums are reasonably claimed proportionate to this short-lived case, whereas other Lemon Law cases generally have involved substantially higher amounts for more extensive litigation.

Additionally, the types of attorneys' fees are recoverable as matters of law, as addressed above.

Further, Defendant's Declaration of Ryan Kay unsupportively summarizes case events, gives conclusory opinions of excessive amounts, and describes a minimally litigated case that was quickly resolved.

As for the multiplier, the Court concurs with Defendant, and finds that this relatively simple Lemon Law case, quickly resolved, is nowhere close to serving as justification for the increased amount.

IV. CONCLUSION

Therefore, the Court grants the Motion, but with a reduction in the amount of the requested multiplier.